

Law & Motion

3. 9:00 AM CASE NUMBER: C23-00358
CASE NAME: RAY SY VS. RODNEY DOTSON
***HEARING ON MOTION IN RE: FOR LEAVE TO FILE AMENDED COMPLAINT**
FILED BY: SY, RAY
TENTATIVE RULING:

Plaintiffs Ray Sy and Violeta Sy (“Plaintiffs”) filed a Motion for Leave to File Amended Complaint on November 17, 2025 (the “Motion for Leave to File”). The Motion for Leave to File was set for hearing on April 6, 2026.

Shortly thereafter, on November 25, 2025, defendant Gin Ivy Sevilla filed a Motion to Continue Trial (the “Motion to Continue Trial”). The Motion to Continue Trial was set for hearing on April 13, 2026.

Both motions were subsequent set for hearing on the same date, April 13, 2026.

Background

Plaintiffs filed their initial Complaint on February 16, 2023 (the “Complaint”).

Defendants Rodney James Dotson and Business Alliance Insurance Company answered on April 7, 2023.

Defaults were entered on August 23, 2023 as to defendants Gin Ivy Sevilla and Civver Construction Design, Inc. Defendant Suretec Insurance Company was dismissed on January 29, 2024. Defendant Gin Ivy Sevilla later answered the Complaint after the default was set aside.

In June 2025, a trial date was set for January 12, 2026.

On November 17, 2025, Plaintiffs filed their Motion for Leave to File to “to add a specific prayer or recovery of a statutory \$500 plus attorney’s fees under Business & Professions Code section 7160 in connection with an existing fraud in the inducement claim arising from a home improvement contract.”

At the December 11, 2025 Issue Conference, the January 12, 2026 trial date was confirmed. Later, by ex parte application, the Court continued the January 12, 2026 to a date to be set by trial setting conference. At that trial setting conference on January 28, 2026, an OSC and Case Management Conference was set for March 20, 2026. At the March 20, 2026 trial setting conference, the Court resolved to set the matter for a further Case Management Conference on September 23, 2026. No new trial date has been set to date.

Analysis

1. Motion for Leave to File

The court has discretion “upon any terms as may be just” to allow an amendment to any pleading. Code Civ. Proc. § 473(a)(1); see Rule 3.1324 of California Rules of Court (“CRC”); see also *Hong Sang Market, Inc. v. Peng* (2018) 20 Cal.App.5th 474, 488 (“*Hong Sang Market, Inc.*”); see also Weil & Brown, et al., *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025), § 6:602 *et seq.* Leave to

amend a pleading is entrusted to the sound discretion of the trial court. *Hong Sang Market, Inc.*, *supra*, 20 Cal.App.5th at 488.

The motion is unopposed. Having considered the nature of the proposed amended pleading and the totality of the circumstances, including the current procedural posture of the case, the Court grants Plaintiffs' request for leave to amend their Complaint.

2. Motion to Continue Trial

The prior trial date has been vacated at this point and the Motion to Continue Trial is moot.

Disposition

The Court further finds and orders as follows:

1. The Motion for Leave to File is GRANTED. Plaintiffs are granted leave to file an amended complaint herein. Such amended complaint shall be filed and served **within ten (10) days of notice of entry of this order.**
2. The Motion to Continue Trial is DENIED as moot.

4. 9:00 AM CASE NUMBER: C23-00358

CASE NAME: RAY SY VS. RODNEY DOTSON

***HEARING ON MOTION IN RE: TO CONTINUE TRIAL**

FILED BY: SEVILLA, GIN IVY

TENTATIVE RULING:

See Line 3 above.

5. 9:00 AM CASE NUMBER: C23-02467

CASE NAME: CHRISTINA CRAVAT VS. BIO-RAD LABORATORIES, INC.

***HEARING ON MOTION IN RE: LEAVE TO FILE A SECOND AMENDED COMPLAINT**

FILED BY: CRAVAT, CHRISTINA CUCCIA

TENTATIVE RULING:

Plaintiff Christina Cuccia Cravat's Motion for Leave to File a Second Amended Complaint (SAC) is **continued** by the Court to April 27, 2026, at 9:00 a.m.

California Rule of Court 3.1324 requires that a motion to amend be accompanied by a separate declaration specifying the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and the reasons why the request for amendment was not made earlier. The declaration must be signed under penalty of perjury. (Code Civ. Proc. § 2015.5.)

The Declaration of Michael J. Reed submitted in support of this motion is not signed under penalty of perjury and therefore lacks evidentiary value. The declaration otherwise substantially complies with Rule 3.1324(b), as it identifies the retained and new causes of action, explains that the amendment is necessary to consolidate all related claims consistent with the Court's consolidation order, and documents the meet-and-confer history in reasonable detail. A redline of the proposed SAC against